



**112 IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

CRR-1498-2016(O&M)

Reserved on: 16.03.2026.

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Gurjit Singh and others

...Petitioners

vs.

State of Punjab and another

...Respondents

Coram : Hon'ble Mr. Justice N.S.Shekhawat

Present : Mr. Preetinder Singh Ahluwalia, Sr. Advocate with
Dr. Isha Mehta, Advocate and
Mr. Akash Gahlawat, Advocate
for the petitioners.

Mr. Sartaj Singh Gill, Sr. DAG, Punjab.

Mr. Damanbir Singh Sobti, Advocate (through VC) with
Ms. Sheenam Kamboj, Advocate
for the complainant.

N.S.Shekhawat J.

1. The petitioners have filed the present petition against the impugned order dated 24.12.2015, passed by the Court of Additional Sessions Judge, Ludhiana, whereby the petitioners have been summoned as additional accused by the trial Court, by exercising the power under Section 319 Cr.P.C.
2. During the pendency of the present petition before this Court, petitioner No.1 had expired and learned counsel for the petitioners does not press the petition qua him.
3. Ordered accordingly.



4. Learned Senior counsel for the petitioners has vehemently argued that the FIR in the present case was registered on the basis of the statement made by Sukhdeep Singh and the same has been reproduced below:-

“Statement of Sukhdeep Singh son of Sukhwinder Singh, caste Jatt, resident of village Narangwal Kalan, P.S.Dehlon, District Ludhiana, aged about 20 years, 98146-29639 stated that I am the resident of above said address and studying in 10+2 in Government School, Mehma Singh Wala. My father has two brothers, Baljinder Singh and Manjit Singh. Manjit Singh is living in Canada. We are living together in same house and my chacha Baljinder Singh is farmer, he is married. On dated 21.08.2013, I and my chacha Baljinder Singh @ Tidda were coming from Ludhiana to our village Narangwal Kalan after attending the court hearing in the Court of Shivinder Singh Mann, ASJ, Ludhiana in case FIR No.16/12, under Sections 307/34 IPC, P.S. Dehlon. The prosecution party in the above said case Jagpal Singh etc. were chasing us from the Court, then time would around 7.00/7.30 P.M., my chacha Baljinder Singh stopped at a shop at Narang Wala Bus Stop for purchasing CD, then one car bearing No.PB-10CA-4213 Icon silver color and one Scorpio bearing No.PB-7008 came from the side of Mehma Singh Wala Chowk and Jagpal Singh, son of Gurjit Singh, armed with iron Daah, Gurjant Singh @ Janta, son of Gurjeet Singh, armed with iron daah, Darshan Singh, son of Gurdev Singh, armed with iron sword, Shaminder Singh, son of Fouji Jeeta armed with iron rod, Micky, son of Inderjeet Singh, armed with sword and Gurjit Singh Lamberdar, son of Ajaib Singh, armed with sticks, residents of village Narangwal Kalan and 3-4 unidentified persons armed with iron rods came out from the car, then Gurjit Singh Lambardar raised lalkara that we kill Baljinder Singh Tidda. During this above said person circle my chacha Baljinder Singh, then Gurjit Singh Lambardar hit blow stick on the head of my chacha Baljinder Singh in order to kill him. My chacha



raised his left arm which caused hit blow by Gurjit Singh Lambardar on wrist of left arm and my chacha fell on the earth then Jagpal Singh above hit blow iron rod on the left leg of my Chacha Baljinder Singh. Gurjant Singh @ Janta hit blow iron on the left leg of my chacha Baljinder Singh with intention to kill him. Harman Singh hit blow sword on the left leg of my chacha with intention to kill him, Micky hit blow the sword on the left leg of my chacha with intention to kill him. Shaminder Singh hit blow rod on the right leg of my chacha and other unidentified person hit blow with their respective rods on the person of my chacha and they also hit blow with their respective weapon on person of my chacha. I saw whole incident when I raised rola in view to save my chacha then all the persons ran away in their respective vehicle towards Mehma Singh Wala side by raising lalkara and giving threats to life above persons also snatched Samsung my mobile of my chacha which the sim no. is and one wallet along with rupees. Thereafter, we got admitted chacha Baljinder Singh at Deep Hospital, Ludhiana in a serious condition he is still unconscious. Five bottles of blood have been admitted to him by the doctors. Kidneys of my chacha stopped working due to these injuries: he is under treatment in the hospital. Reason behind this is that Jagpal Singh and others caused injuries to chacha Baljinder Singh on 29.01.2012 and in defence my chacha Baljinder Singh also caused injuries to Jagpal Singh and others. Due to this reason above accused caused injuries to my chacha Baljinder Singh with intention to kill him. Strict action shall be taken against them. I could not record my statement with you due to manage blood and rupees for treatment of my chacha Baljinder Singh, who is in serious condition, today you have recorded my statement in the hospital, heard and it is correct. Sd/- Sukhdeep Singh.”

5. Learned Senior counsel for the petitioners submits that after detailed investigation, the petitioners were found innocent during the course of



investigation. Even a detailed investigation report (Annexure P-5) was prepared by Additional Deputy Commissioner of Police-III, Ludhiana and he had examined several witnesses during the inquiry. He also took into consideration the documentary as well as scientific evidence to arrive at the conclusion in the said inquiry and finally held that the petitioners were not present at the place of occurrence. Even all the witnesses had stated that the petitioners were at some other place at the time of the incident. However, during the course of trial, Dr. H.S. Kang, appeared as PW-1, whereas Sukhdeep Singh, complainant appeared as PW-2, while appearing as PW2, Sukhdeep Singh, complainant reiterated his version, as mentioned in the FIR. Thereafter, the prosecution moved an application under Section 319 Cr.P.C. for summoning the petitioners as additional accused and the prayer made by the prosecution was allowed and the petitioners were ordered to face trial under Section 302, 341, 382 of IPC along with co-accused, who are already facing prosecution.

6. Learned Senior counsel further submits that in the present case, the occurrence had admittedly taken place on 21.08.2013, however, the FIR was got registered by the complainant after a delay of 72 hours i.e. 24.08.2013. He further submits that the complainant in the present case claims himself to be an eyewitness of the occurrence and in such a case, the delay in registration of the FIR itself proved that the delay of 72 hours was utilized by the complainant in concocting a false story. Further, even the final report under Section 173 Cr.P.C. clearly demonstrates that the petitioners had been exonerated on the basis of the thorough and scientific investigation conducted by Additional Deputy Commissioner of Police-III, Ludhiana, who found that one of the vehicle, which was allegedly used in the occurrence, was at a workshop and the



injuries were caused by two accused, who were already challaned by the police. Even otherwise, it is apparent from the perusal of the medical evidence that the injuries on the person of the deceased were on the lower limbs/non-vital parts. Even, the deceased had died on 15.09.2013 i.e. 24 days after the occurrence and that too, on account of septicemia. Consequently, even the ingredients of the offence under Section 302 IPC would be debatable in the present case.

7. On the other hand, learned State counsel also submitted that all the petitioners were found innocent and during investigation, it was established that they had not participated in the occurrence. On the other hand, learned counsel appearing on behalf of respondent No.2 vehemently argued that the names of the petitioners were specifically named in the FIR (Annexure P-1) itself and specific roles were assigned to them. Even all the petitioners were duly armed and had caused injuries to the deceased. Thus, the impugned order is liable to be upheld by the Court. Even the ocular account is also supported by the medical evidence. Even the prosecution examined PW-1, Dr. H.S. Kang, who stated that Baljinder Singh @ Tidda, deceased had suffered 15 serious injuries on his person. Even it shows that the petitioners along with their co-accused had caused serious injuries on the person of Baljinder Singh, deceased.

8. I have heard learned counsel for the parties and perused the record carefully.

9. While interpreting the power of the trial Court to summon additional accused under Section 319 Cr.P.C., the Hon'ble Supreme Court has held in the matter of ***"Brijendra Singh and others Vs. State of Rajasthan"*** 2017(3) RCR(Criminal) 374, as under:-



*“9. Powers of the Court to proceed under Section 319 Cr.P.C. even against those persons who are not arraigned as accused, cannot be disputed. This provision is meant to achieve the objective that real culprit should not get away unpunished. A Constitution Bench of this Court in **Hardeep Singh v. State of Punjab & Ors., 2014(1) RCR (Criminal) 623 : 2014(1) Recent Apex Judgments (R.A.J.) 384 : (2014) 3 SCC 92**, explained the aforesaid purpose behind this provision in the following manner:*

"8. The constitutional mandate under Articles 20 and 21 of the Constitution of India provides a protective umbrella for the smooth administration of justice making adequate provisions to ensure a fair and efficacious trial so that the accused does not get prejudiced after the law has been put into motion to try him for the offence but at the same time also gives equal protection to victims and to society at large to ensure that the guilty does not get away from the clutches of law. For the empowerment of the courts to ensure that the criminal administration of justice works properly, the law was appropriately codified and modified by the legislature under Cr.P.C indicating as to how the courts should proceed in order to ultimately find out the truth so that an innocent does not get punished but at the same time, the guilty are brought to book under the law. It is these ideals as enshrined under the Constitution and our laws that have led to several decisions, whereby innovating methods and progressive tools have been forged to find out the real truth and to ensure that the guilty does not go unpunished.

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*12. Section 319 Cr.P.C. springs out of the doctrine *judex damnatur cum nocens absolvitur* (Judge is condemned when guilty is acquitted) and this doctrine must be used as a beacon light while explaining the ambit and the spirit underlying the enactment of Section 319 Cr.P.C.*



13. It is the duty of the court to do justice by punishing the real culprit. Where the investigating agency for any reason does not array one of the real culprits as an accused, the court is not powerless in calling the said accused to face trial. The question remains under what circumstances and at what stage should the court exercise its power as contemplated in Section 319 Cr.P.C.?

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19. The court is the sole repository of justice and a duty is cast upon it to uphold the rule of law and, therefore, it will be inappropriate to deny the existence of such powers with the courts in our criminal justice system where it is not uncommon that the real accused, at times, get away by manipulating the investigating and/or the prosecuting agency. The desire to avoid trial is so strong that an accused makes efforts at times to get himself absolved even at the stage of investigation or inquiry even though he may be connected with the commission of the offence."

10. It also goes without saying that Section 319 Cr.P.C., which is an enabling provision empowering the Court to take appropriate steps for proceeding against any person, not being an accused, can be exercised at any time after the charge-sheet is filed and before the pronouncement of the judgment, except during the stage of Section 207/208 Cr.P.C., the committal etc., which is only a pre-trial stage intended to put the process into motion.

11. In Hardeep Singh's case, the Constitution Bench has also settled the controversy on the issue as to whether the word 'evidence' used in Section 319(1) Cr.P.C. has been used in a comprehensive sense and indicates the evidence collected during investigation or the word 'evidence' is limited to the evidence recorded during trial. It is held that it is that material, after cognizance is taken by the Court, that is available to it while making an inquiry into or trying an offence, which the court can



utilise or take into consideration for supporting reasons to summon any person on the basis of evidence adduced before the Court. The word 'evidence' has to be understood in its wider sense, both at the stage of trial and even at the stage of inquiry. It means that the power to proceed against any person after summoning him can be exercised on the basis of any such material as brought forth before it. At the same time, this Court cautioned that the duty and obligation of the Court becomes more onerous to invoke such powers consciously on such material after evidence has been led during trial. The Court also clarified that 'evidence' under Section 319 Cr.P.C. could even be examination-in-chief and the Court is not required to wait till such evidence is tested on cross-examination, as it is the satisfaction of the Court which can be gathered from the reasons recorded by the Court in respect of complicity of some other person(s) not facing trial in the offence.

12. The moot question, however, is the degree of satisfaction that is required for invoking the powers under Section 319 Cr.P.C. and the related question is as to in what situations this power should be exercised in respect of a person named in the FIR but not charge-sheeted. These two aspects were also specifically dealt with by the Constitution Bench in Hardeep Singh's case and answered in the following manner:

*"95. At the time of taking cognizance, the court has to see whether a prima facie case is made out to proceed against the accused. Under Section 319 Cr.P.C., though the test of prima facie case is the same, the degree of satisfaction that is required is much stricter. A two-Judge Bench of this Court in *Vikas v. State of Rajasthan* [2013(4) RCR (Criminal) 948 : 2013(6) Recent Apex Judgments (R.A.J.) 356 : (2014) 3 SCC 321], held that on the objective satisfaction of the court a person may be "arrested" or "summoned", as the circumstances of the case may require, if it appears from the evidence that any such person not being the accused has*



committed an offence for which such person could be tried together with the already arraigned accused persons.

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105. Power under Section 319 Cr.P.C. is a discretionary and an extraordinary power. It is to be exercised sparingly and only in those cases where the circumstances of the case so warrant. It is not to be exercised because the Magistrate or the Sessions Judge is of the opinion that some other person may also be guilty of committing that offence. Only where strong and cogent evidence occurs against a person from the evidence led before the court that such power should be exercised and not in a casual and cavalier manner.

106. Thus, we hold that though only a prima facie case is to be established from the evidence led before the court, not necessarily tested on the anvil of cross-examination, it requires much stronger evidence than mere probability of his complicity. The test that has to be applied is one which is more than prima facie case as exercised at the time of framing of charge, but short of satisfaction to an extent that the evidence, if goes unrebutted, would lead to conviction. In the absence of such satisfaction, the court should refrain from exercising power under Section 319 Cr.P.C. In Section 319 Cr.P.C. the purpose of providing if "it appears from the evidence that any person not being the accused has committed any offence" is clear from the words "for which such person could be tried together with the accused". The words used are not "for which such person could be convicted". There is, therefore, no scope for the court acting under Section 319 Cr.P.C. to form any opinion as to the guilt of the accused.

(emphasis supplied)"



13. *In order to answer the question, some of the principles enunciated in Hardeep Singh's case may be recapitulated:*

Power under Section 319 Cr.P.C. can be exercised by the trial court at any stage during the trial, i.e., before the conclusion of trial, to summon any person as an accused and face the trial in the ongoing case, once the trial court finds that there is some 'evidence' against such a person on the basis of which evidence it can be gathered that he appears to be guilty of offence. The 'evidence' herein means the material that is brought before the Court during trial. Insofar as the material/evidence collected by the IO at the stage of inquiry is concerned, it can be utilised for corroboration and to support the evidence recorded by the Court to invoke the power under Section 319 Cr.P.C. No doubt, such evidence that has surfaced in examination-in-chief, without cross-examination of witnesses, can also be taken into consideration. However, since it is a discretionary power given to the Court under Section 319 Cr.P.C. and is also an extraordinary one, same has to be exercised sparingly and only in those cases where the circumstances of the case so warrants. The degree of satisfaction is more than the degree which is warranted at the time of framing of the charges against others in respect of whom charge sheet was filed. Only where strong and cogent evidence occurs against a person from the evidence led before the Court that such power should be exercised. It is not to be exercised in a casual or a cavalier manner. The prima facie opinion which is to be formed requires stronger evidence than mere probability of his complicity.

10. Thus, it is ample clear that the power of summoning under Section 319 Cr.P.C. is not to be exercised in a routine manner and the existence of more



than a prime facie case is sine qua non to summon an additional accused. In the present case also, the prosecution was launched on the basis of the statement made by Sukhdeep Singh, complainant, who had levelled serious allegations against the present petitioners. However, during the course of investigation, when the police examined the statements of various witnesses, who were present at the spot as well as the scientific evidence, it was discovered that the petitioners had not participated in the occurrence and even a detailed inquiry report (Annexure P-5) was prepared by Additional Deputy Commissioner of Police-III, Ludhiana in this regard. Now, during the course of trial, the prosecution examined Sukhdeep Singh, complainant as PW-2 and he reiterated the same statement, as stated in the FIR (Annexure P-1). Except the statement of PW-2 Sukhdeep Singh, there was no other fresh material to support the so-called verbal/ocular version. Thus, the “evidence” recorded during trial was nothing more than the statement, which was already there in the shape of the FIR (Annexure P-1). No doubt, the trial Court would be competent to exercise power even on the basis of such statements, which were recorded before it; however, in a case like the present, where plethora of evidence was collected by the Investigating Officer during investigation, which suggested otherwise, the trial Court was at least duty bound to look into the same while forming prima facie opinion. Apart from that, the trial Court was also bound to examine the fact as to whether much stronger evidence than mere possibility of their complicity, had come on record and there was no satisfaction of this nature. Thus, the impugned order dated 24.12.2015, passed by the Court of Additional Sessions Judge, Ludhiana, cannot stand judicial scrutiny and is liable to be set aside.



11. As a consequence, the present petition succeeds and the impugned order dated 24.12.2015, passed by the Court of Additional Sessions Judge, Ludhiana is ordered to be set aside qua the petitioners.

12. Pending application, if any, stands also disposed of.

(N.S.SHEKHAWAT)
JUDGE

08.06.2026

hemlata

Whether speaking/reasoned	:	Yes/No
Whether reportable	:	Yes/No